

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 1016

By: McCane and Deck of the
House

and

Bergstrom of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to labor; defining terms; requiring
13 compensation for minors appearing in Internet
14 content; requiring certain records be kept; requiring
15 certain trust account be kept for minor; permitting
16 civil action; permitting the Attorney General to
17 enforce act; requiring content removal; providing age
18 exception; providing for codification; and providing
19 an effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 90 of Title 40, unless there is
23 created a duplication in numbering, reads as follows:

24 As used in this act:

1. "Content creation" means content shared on an online
platform in exchange for compensation;

1 2. "Content creator" means an individual or individuals
2 eighteen (18) years of age or older, including family members, who
3 create video content performed in Oklahoma in exchange for
4 compensation, and includes any proprietorship, partnership, company,
5 or other corporate entity assuming the name or identity of a
6 particular individual or individuals, or family members, for the
7 purpose of that content creator. Content creator does not include a
8 person under the age of eighteen (18) who produces their own video
9 content; and

10 3. "Online platform" means any public-facing website, web
11 application, or digital application, including a mobile application.
12 Online platform includes a social network, advertising network,
13 mobile operating system, search engine, email service, monetization
14 platform to sell digital services, streaming services, paid
15 subscription, or Internet access service.

16 SECTION 2. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 90.1 of Title 40, unless there
18 is created a duplication in numbering, reads as follows:

19 A. A minor is considered engaged in the work of content
20 creation when the following criteria are met at any time during the
21 previous twelve-month period:

22 1. At least thirty percent (30%) of the content creator's
23 compensated video content produced within a thirty-day period
24 included the likeness, name, or photograph of the minor. Content

1 percentage is measured by the percentage of time the likeness, name,
2 or photograph of the minor visually appears or is the subject of an
3 oral narrative in a video segment as compared to the total length of
4 the segment; and

5 2. The number of views received per video segment on any online
6 platform met the online platform's threshold for generating
7 compensation or the content creator received actual compensation for
8 video content equal to or greater than ten cents (\$0.10) per view;
9 or

10 3. The content creator received compensation greater than Ten
11 Thousand Dollars (\$10,000.00).

12 B. All video content creators whose content features a minor
13 engaged in the work of content creation shall maintain the following
14 records and retain the records until the minor reaches the age of
15 twenty-one (21):

16 1. The name and documentary proof of the age of the minor
17 engaged in the work of content creation;

18 2. The amount of content creation that generated compensation
19 as described in subsection A of this section during the reporting
20 period;

21 3. The total number of minutes of content creation for which
22 the content creator received compensation during the reporting
23 period;

1 4. The total number of minutes a minor was featured in content
2 creation during the reporting period;

3 5. The total compensation generated from content creation
4 featuring a minor during the reporting period; and

5 6. The amount deposited into the trust account for the benefit
6 of the minor engaged in the work of content creation as required by
7 Section 3 of this act.

8 C. The records required by this section must be readily
9 accessible to the minor for review. The content creator shall
10 provide notice to the minor of the existence of the records.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 90.2 of Title 40, unless there
13 is created a duplication in numbering, reads as follows:

14 A. A minor who is engaged in the work of content creation
15 consistent with this act must be compensated by the content creator.
16 The content creator must set aside gross earnings on the video
17 content that includes the likeness, name, or photograph of the minor
18 in a trust account to be preserved for the benefit of the minor
19 until the minor reaches the age of majority, according to the
20 following distribution:

21 1. If only one minor meets the content threshold described in
22 subsection A of Section 2 of this act, the percentage of total gross
23 earnings on any video segment, including the likeness, name, or
24 photograph of the minor that is equal to or greater than half of the

1 content percentage that includes the minor as described in
2 subsection A of Section 2 of this act; or

3 2. If more than one minor meets the content threshold described
4 in subsection A of Section 2 of this act and a video segment
5 includes more than one of those minors, the percentage described in
6 paragraph 1 of this subsection for all minors in any segment must be
7 equally divided between the minors regardless of differences in
8 percentage of content provided by the individual minors.

9 B. A trust account required under this act must, at a minimum,
10 provide that:

11 1. The money in the account is available only to the minor
12 engaged in the work of content creation;

13 2. The account is held by a bank or trust company, as those
14 terms are defined in Section 102 of Title 6 of the Oklahoma
15 Statutes;

16 3. The money in the account becomes available to the minor
17 engaged in the work of content creation upon the minor attaining the
18 age of eighteen (18) years or upon a declaration that the minor is
19 emancipated; and

20 4. That the account meets the requirements of the Uniform
21 Transfers to Minors Act in Title 58 of the Oklahoma Statutes.

22 C. Content containing the likeness of a child must be deleted
23 and removed from any online platform when the request is made by a
24 minor age thirteen (13) or older, or an adult, whose likeness

1 appears in the content. The request shall be in writing through
2 mail or an electronic communication. The content must be deleted
3 and removed by the content creator from the online platform
4 immediately, and in any instance no longer than seven (7) days after
5 the written request is made.

6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 90.3 of Title 40, unless there
8 is created a duplication in numbering, reads as follows:

9 A. If a content creator knowingly or recklessly violates this
10 act, a minor satisfying the criteria described in subsection A of
11 Section 2 of this act may commence a civil action to enforce the
12 provisions of this act regarding the trust account. In any action
13 brought in accordance with this act, the court may award the
14 following damages:

- 15 1. Actual damages;
- 16 2. Punitive damages; and
- 17 3. The costs of the action, including attorney fees and
18 litigation costs.

19 B. This act does not affect a right or remedy available under
20 any other law.

21 C. Nothing in this act shall be interpreted to have any effect
22 on a party that is neither the content creator nor the minor who
23 engaged in the work of content creation.

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 90.4 of Title 40, unless there
3 is created a duplication in numbering, reads as follows:

4 If a content creator whose content features minors engaged in
5 the work of content creation fails to maintain the records as
6 provided in Section 2 of this act, the minor may commence a civil
7 action against the content creator for damages and to enforce this
8 act.

9 SECTION 6. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 90.5 of Title 40, unless there
11 is created a duplication in numbering, reads as follows:

12 A minor compensated under this act is exempt from the minimum
13 age provisions of Section 71 of Title 40 of the Oklahoma Statutes.

14 SECTION 7. This act shall become effective November 1, 2026.

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16 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
17 OVERSIGHT, dated 03/03/2026 - DO PASS, As Amended and Coauthored.
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